

STATE OF NEW YORK

1697--A

2025-2026 Regular Sessions

IN ASSEMBLY

January 14, 2025

Introduced by M. of A. WOERNER, STIRPE, STECK, McDONALD -- read once and referred to the Committee on Labor -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the labor law, in relation to requiring farm worker meal and lodging minimum wage credits are adjusted for cost of living increases

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 673 of the labor law is amended by adding a new
2 subdivision 3 to read as follows:

3 3. Meals, lodging and utilities allowances. Notwithstanding any other
4 provision of law or regulation to the contrary, the following items and
5 their respective values may be considered part of the minimum wage rate,
6 if any of the following items are provided to the employee: meals;
7 lodging; and utilities. The department shall publish updated allowance
8 amounts adjusted to reflect an increase in the rate of cost of living,
9 as determined by the cost of living adjustment calculator, on or before
10 December first, two thousand twenty-five, and every five years thereaft-
11 er, and such updated allowance amounts shall take effect on January
12 first next succeeding such publication.

13 § 2. This act shall take effect on the thirtieth day after it shall
14 have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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